



CHAPTER xlv.

An Act to authorise the Chesterfield Gas and Water Board A.D. 1911.
to make new waterworks and for other purposes.

[29th June 1911.]

WHEREAS the Chesterfield Gas and Water Board (hereinafter called "the Board") were by the Chesterfield Gas and Water Board Act 1895 (hereinafter called "the Act of 1895") incorporated to take over the undertaking of the Chesterfield Waterworks and Gaslight Company and the Board have taken over the said undertaking and are now the authority for the supply of gas and water within the limits as defined by the Act of 1895 and extended by the Chesterfield Borough (Extension) Order 1910 (which Order is scheduled to and confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1910):

And whereas by the Chesterfield Gas and Water Board Act 1904 (hereinafter called "the Act of 1904") the Board were authorised to make new waterworks:

And whereas the demand for water within the limits of supply of the Board continues to increase and it is expedient that the Board should be authorised to purchase additional land and to construct new reservoirs and other works connected therewith and with their existing reservoirs and works and to take and impound water and make provision for compensation water and that the purchase by the Board of certain land and buildings for the protection of the water supply from pollution should be confirmed and that the Board should have within their limits of supply the powers of an urban sanitary authority under the Public Health Act for the supply of water and that other powers

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And whereas it is expedient that the limits of the Board for the supply of gas should be extended and that further financial and other powers should be conferred upon the Board in respect of the gas undertaking:

And whereas the Board have been authorised to borrow the following moneys in respect of their undertaking (that is to say):—

Under the Act of 1895 as amended by the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1900—

(A) For the purpose of paying the price of the undertaking of the company and the taxed costs and expenses of and incidental to the transfer thereof (including all costs and expenses of the arbitration not otherwise payable) the sums necessary for those purposes;

(B) For the purpose of paying off and redeeming the mortgage debt of the company any sum not exceeding the amount thereof at the date of transfer;

(D) For the purposes of the water undertaking to which capital is properly applicable any sum sanctioned by the Local Government Board not exceeding fifteen thousand pounds:

Under the Act of 1904—

(A) For the reservoir and waterworks (including land) by that Act authorised any sum not exceeding forty-two thousand pounds;

(c) For the general purposes of their water undertaking and gas undertaking respectively, such further sums as the Local Government Board may sanction:

And whereas the Board have borrowed in respect of their water undertaking the sum of two hundred and fifteen thousand eight hundred and sixty-two pounds five shillings and eightpence of which sum on the twenty-ninth day of September one thousand nine hundred and ten thirty thousand two hundred and thirty-nine pounds five shillings and ninepence had been paid off and one hundred and eighty-five thousand six hundred and twenty-two pounds nineteen shillings and elevenpence remained outstanding:

And whereas estimates for the purchase of lands and the execution of the works by this Act authorised have been prepared by the Board and the amount of such estimates is as follows:—

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—

For water purposes—	£	s.	d.
Purchase of land and easements - -	5,500	0	0
Reservoirs embankments dams &c. - -	64,446	0	0
Pumping stations buildings and dividing weirs - - - - -	1,892	0	0
Tunnels - - - - -	30,563	0	0
Trunk mains - - - - -	8,131	0	0
Other works including catchwaters roads and channels - - - - -	44,719	0	0
	<u>£155,251</u>	<u>0</u>	<u>0</u>

And whereas the several works mentioned in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the other provisions in this Act should be made:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and plans of the lands by this Act authorised to be acquired and a book of reference containing the names of the owners or reputed owners and lessees or reputed lessees and occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Derby which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Chesterfield Gas and Water Board Act 1911 and this Act and the Acts of 1895 and 1904

Short and collective titles.

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A.D. 1911. may be cited collectively as the Chesterfield Gas and Water Board Acts 1895 to 1911.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Water.

Part III.—Gas.

Part IV.—Financial and Miscellaneous.

Incorporation
of Acts.

3. The following Acts and portions of Acts (as far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act (namely):—

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of
“the owner or reputed owner of any such house
“or of the agent of such owner” in clause 44
of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts;

(2) The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845:

(3) The provisions of the Railways Clauses Consolidation Act 1845 with reference to the temporary occupation of land near the railway during the construction thereof:

Provided that the said provisions shall be incorporated only for the purpose of the construction of the reservoirs tanks tunnels roads catchwaters and works by this Act authorised to be constructed; and

Provided that in the said provisions the expression “the railway” and “the work” shall mean respectively the reservoirs or as the case may be the tanks tunnels roads catchwaters and works by this Act authorised and the expression “the centre

line of the railway" shall mean in the case of the tunnels roads catchwaters and works the centre lines of the same respectively and in the case of the reservoirs and tanks the boundaries of the same.

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4. In this Act—

Interpretation.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction;

"The Act of 1895" means the Chesterfield Gas and Water Board Act 1895;

"The Act of 1904" means the Chesterfield Gas and Water Board Act 1904;

"The Board" means the Chesterfield Gas and Water Board;

"The constituent authorities" means the corporation of the borough of Chesterfield acting by the council and the council of the urban district of Whittington and the council of the urban district of Newbold and Dunston;

"The gas undertaking" and "the water undertaking" mean so much of the undertaking of the Board as relates to the supply of gas and water respectively.

PART II.

WATER.

5. Subject to the provisions of this Act the Board may wholly in the county of Derby and in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (that is to say):—

Power to construct works.

Work No. 1 A conduit or line of pipes (Catchwater No. 1) situate in the parish of Curbar and in the parish and urban district of Baslow and Bubnell commencing at or in the Sandyford Brook in the parish of Curbar in

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the land or property numbered 270 on the $\frac{1}{2500}$ scale Ordnance map (1898 edition) Derbyshire sheet XVII.—9 at a point $2\frac{1}{4}$ chains or thereabouts measured up the said brook from the point of its intersection with the urban district boundary the termination of the said Catchwater No. 1 is situate in the parish and urban district of Baslow and Bubnell at or in Work No. 2 hereinbelow described:

Work No. 2 A dividing weir and basin (Dividing Weir No. 1) situate in the parish and urban district of Baslow and Bubnell and in the parish of Holmesfield in or on the Bar Brook at a point 18 chains or thereabouts measured down the said brook from the dam of the Little Barbrook Reservoir The situation of the said dividing weir is at or near a point measured 6 chains up the Bar Brook from the intersection of the 900 feet contour line therewith as delineated on the $\frac{1}{10560}$ scale Ordnance map (second edition 1899) Derbyshire sheet XVII. S.W.:

Work No. 3 A conduit or line of pipes (Catchwater No. 2) situate in the parish of Holmesfield and in the parish of Barlow commencing in the parish of Holmesfield at or in the above described Work No. 2 and terminating in the parish of Barlow at or in Work No. 4 hereinbelow described:

Work No. 4 A dividing weir and basin (Dividing Weir No. 2) situate in the parish of Barlow and in the parish and urban district of Baslow and Bubnell in or on the Blake Brook in the lands or property numbered respectively 620 and 26 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XVII.—14 at a point $3\frac{3}{4}$ chains or thereabouts measured in a direction west north-west from the most northerly angle of the land or property numbered 1 on the aforesaid Ordnance map:

Work No. 5 A conduit or line of pipes (Catchwater No. 3) situate in the parish and urban district of Baslow and Bubnell commencing at or in the above described Work No. 4 and terminating in the land or property numbered 28 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—2 at a point $4\frac{3}{4}$ chains or thereabouts measured in a direction north-east of the north-

east corner of the land or property numbered 583 on the A.D. 1911.
aforesaid Ordnance map :

Work No. 6 A conduit or line of pipes (Catchwater No. 4) situate in the parish and urban district of Baslow and Bubnell commencing at the termination of Work No. 5 above described and terminating at and in Work No. 9 at its commencement :

Work No. 8 An aqueduct conduit or line of pipes (Blackleach Brook Diversion) situate in the parish and urban district of Baslow and Bubnell and in the parish of Brampton urban district of Brampton and Walton commencing in the aforesaid parishes in the Blackleach Brook at or near the point marked "Dividing Weir No. 3" on the deposited plans and terminating in the aforesaid parishes in the Blackleach Brook adjoining the most southerly point of the land or property numbered 595 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—2 :

Work No. 9 A tunnel 78 chains or thereabouts in length and in a straight line throughout situate in the parish of Brampton urban district of Brampton and Walton commencing at the termination of Work No. 6 and terminating at a point in the Freebirch Quarries situate in the land or property numbered 727 upon the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—3 at a point 2 chains or thereabouts south of the most northerly corner of the aforesaid land or property :

Work No. 9A A vertical shaft situate in the parish of Brampton urban district of Brampton and Walton to be sunk in the land or property numbered 738 upon the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—3 commencing at the surface of the ground at a point 2 chains or thereabouts north-east of the north corner of Leashfield Barn and terminating in the hereinbefore described tunnel Work No. 9 :

Work No. 10 A compensation reservoir to be called "the Baslow Reservoir" situate in the parish of Holmesfield the parish of Curbar and the parish and urban district of Baslow and Bubnell or some of them on or on any portion or portions of the lands fields properties or roads

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numbered respectively 21 22 23 24 25 26 27 28 142 287 777 789 790 and 791 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XVII.—14 and intended to be formed by means of an embankment or retaining wall across the Bar Brook :

Work No. 11 (Road Diversion No. 1) The diversion of the main county road from Bakewell to Sheffield situate in the parish and urban district of Baslow and Bubnell and in the parish of Holmesfield for that portion of its length commencing at a point $36\frac{1}{2}$ chains or thereabouts measured towards Sheffield from the milestone marked "Sheffield 11 Bakewell 5" situate in the parish and urban district of Baslow and Bubnell and terminating at a point 74 chains or thereabouts measured towards Sheffield from the aforesaid milestone the termination being in the parish of Holmesfield :

Work No. 12 (Road Diversion No. 2) The diversion of the road or highway from Chesterfield to Curbar situate in the parish and urban district of Baslow and Bubnell and in the parish of Curbar for that portion of its length commencing in the parish and urban district of Baslow and Bubnell at a point $2\frac{1}{2}$ chains or thereabouts measured towards Chesterfield from the milestone marked "Chesterfield 7" and terminating at a point 17 chains or thereabouts from the aforesaid milestone measured towards Curbar the termination being situate in both of the aforesaid parishes :

Work No. 13 An open channel or byewash situate in the parish of Holmesfield and in the parish and urban district of Baslow and Bubnell and in the parish of Curbar commencing at or in the Bar Brook in the parish and urban district of Baslow and Bubnell and in the parish of Holmesfield at a point 50 chains or thereabouts measured in a north by east direction from the bridge carrying the road from Chesterfield to Curbar over the Bar Brook and terminating at or in the Bar Brook in the parish of Curbar and in the parish and urban district of Baslow and Bubnell in the land or property numbered 142 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XVII.—14 at a point $7\frac{1}{2}$ chains or thereabouts in a direction west south-west of the aforesaid road bridge :

Work No. 14 (Line of pipes No. 1) A line of pipes situate A.D. 1911.
in the parish of Barlow and in the parish of Brampton
urban district of Brampton and Walton commencing at or
in the existing manhole and pipe line of the Chesterfield
Rural District Council in the parish of Barlow in the land
or property numbered 620 on the $\frac{1}{2500}$ scale Ordnance
map (second edition 1898) Derbyshire sheet XVII.—15
at a point $6\frac{1}{2}$ chains or thereabouts south of the south-
west corner of the land or property numbered 697 on the
aforesaid map and terminating in the parish of Brampton
urban district of Brampton and Walton at or in the Birley
Brook in or near the north-west corner of the land or
property numbered 52 on the aforesaid Ordnance map:

Work No. 15 A pumping station situate in the parish of
Brampton urban district of Brampton and Walton in the
south corner of the land or property numbered 296 on the
 $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derby-
shire sheet XXV.—1 and adjoining the Board's present
works in the Linacre Brook:

Work No. 16 A road situate in the parish of Brampton
urban district of Brampton and Walton and in the parish
and urban district of Newbold and Dunston for the pur-
pose of affording access to Work No. 15 commencing in
Woodnook Lane in the parish of Brampton at or near
the west corner of the land or property numbered 305
on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898)
Derbyshire sheet XXV.—1 and terminating in the
parish of Newbold and Dunston at the north-west corner
of the land or property numbered 509 on the aforesaid
Ordnance map:

Work No. 17 (Line of pipes No. 2) A line of pipes situate
in the parish of Brampton urban district of Brampton
and Walton commencing at or in the aforesaid pumping
station (Work No. 15) and terminating in the north-east
corner of the Middle Linacre Reservoir The said reservoir
is not delineated on the Ordnance map The termination
of the said pipe line coincides with a point on the land or
property numbered 453 on the $\frac{1}{2500}$ scale Ordnance map
(second edition 1898) Derbyshire sheet XXIV.—4 seven
chains or thereabouts south of the west corner of the land
or property numbered 447 on the said Ordnance map:

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Work No. 18 (Line of pipes No. 3) A line of pipes situate in the parish of Brampton urban district of Brampton and Walton and in the parish and urban district of Newbold and Dunston commencing at the outlet pipe of the Board's low level filter beds in the parish of Brampton urban district of Brampton and Walton The said filters and outlet pipe are not delineated on the Ordnance map The said point of commencement coincides with a point on the land or property numbered 416 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—4 at a distance of one chain or thereabouts measured in a north-east direction from the south-west corner of the said land or property and terminating in the parish and urban district of Newbold and Dunston in the Board's existing main or mains situate in or near the south-west corner of the land or property numbered 485 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXV.—1:

Work No. 19 A covered high service reservoir to be constructed of brick and concrete situate in the parish of Brampton urban district of Brampton and Walton in the western corner of the land or property numbered 593 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—4:

Work No. 20 (Line of pipes No. 4) A line of pipes situate in the parish of Brampton urban district of Brampton and Walton commencing in the Board's existing high service main in the land or property numbered 453 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—4 at a point four chains or thereabouts west of the south-east corner of the land or property numbered 452 on the said Ordnance map and terminating in the Board's existing main situate in the road from Old Brampton to Baslow at the junction of North Lane therewith:

Work No. 21 (Line of pipes No. 5) A line of pipes situate in the parish of Brampton urban district of Brampton and Walton commencing in the termination of the Board's existing main in the road from Old Brampton to Baslow at a point in the said road opposite the north-east corner of the field numbered 578 on the $\frac{1}{2500}$ scale Ordnance

map (second edition 1898) Derbyshire sheet XXIV.—4 and A.D. 1911.
terminating at or in the covered high service reservoir
Work No. 19 :

Work No. 22 (Line of pipes No. 6) A line of pipes situate in the parish of Brampton urban district of Brampton and Walton commencing in the termination of the Board's existing main in the road from Chesterfield to Bakewell opposite the south-east corner of the land or property numbered 1308 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—8 and terminating in the Board's existing main in the aforesaid road opposite the north-east corner of the land or property numbered 1312 on the said Ordnance map :

Work No. 23 (Line of pipes No. 7) A line of pipes situate in the parish of Brampton and in the parish of Walton urban district of Brampton and Walton commencing in the Board's existing main situate in the parish of Brampton at a point four chains or thereabouts north-west of the Bulls Head public-house Holymoorside delineated on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—12 and terminating at or in the Board's existing covered service reservoir situate in the parish of Walton in the land or property numbered 594 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXV.—13.

In addition to the foregoing works the Board may upon the lands delineated on the deposited plans and defined in the deposited book of reference make and maintain all such cuts channels catchwaters tunnels adits conduits pipes culverts drains sluices byewashes shafts watertowers overflows waste-water channels gauges filter-beds tanks banks walls bridges embankments piers approaches telegraphs' telephones and other means of electric communication engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them but nothing in this section shall exonerate the Board from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them :

Provided that no telegraph telephone or other means of electric communication shall be used for the purpose of transmitting

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A.D. 1911, telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Limits of
deviation.

6. In the construction of the works authorised by this Act the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of reservoirs three feet upwards and five feet downwards and in the case of other works three feet upwards and ten feet downwards Provided as follows (that is to say):—

The Board shall not construct any embankment or wall of such reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition:

Except for the purpose of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Power to
take lands
and waters.

7. Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purpose of their water undertaking and the Board may for the same purpose collect impound divert take use and appropriate the water of the following streams namely the Bar Sandyford Blackleach Heathylea and Blake Brooks and their respective tributaries other than the Wadshelf Brook and all such springs streams and waters as will or may be intercepted by the works by this Act authorised.

Right of
way over
Woodnook
Lane.

8. For the purposes of traffic of all kinds in connection with the water undertaking the Board may acquire by compulsion or agreement an easement and right of way over so much of the private occupation road known as Woodnook Lane situate in the parish of Walton in the urban district of Brampton and Walton as extends from the junction of the said lane with the main road from Chesterfield to Old Brampton at a point $4\frac{1}{2}$ chains or thereabouts west of Ashgate House to the commencement of Work No. 16 by this Act authorised.

9.—(1) The acquisition by the Board of the tenement and plot of land known as the Old Star Inn at Holymoorside in the parish of Brampton in the county of Derby and shown upon the deposited plans and containing by admeasurement six acres or thereabouts and comprising the land or property numbered 1650 (part only) 1651 1666 1667 and 1668 on the $\frac{1}{2500}$ scale Ordnance map (second edition 1898) Derbyshire sheet XXIV.—12 is hereby sanctioned and confirmed and the Board may retain hold and use the said tenement and plot of land for the purposes of protecting their waterworks and water supply against contamination pollution and fouling and for the general purposes of the water undertaking and subject to such purposes may let or demise all or any portion of such tenement and plot of land.

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Confirmation
of purchase
of land at
Holymoorside.

(2) The said tenement and plot of land shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section.

10.—(1) Nothing in this Act shall entitle the Board to collect impound take use or appropriate any water out of the Blackleach Brook or on or from so much of the drainage area of the said brook as is situate above the point marked "Dividing Weir No. 3" on the deposited plans which portion of the said drainage area contains 319 acres or thereabouts and is coloured green on the map (scale six inches to one mile) signed in triplicate by Sir Henry Kimber Baronet the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred (one copy of which map has been deposited in the Parliament Office of the House of Lords one copy has been deposited in the Private Bill Office of the House of Commons and one copy at the office of the Board) which map is in this section referred to as "the map" The Board shall so construct Catchwater No. 4 (Work No. 6) as not to impede or in anywise retard the flow of water in the said Blackleach Brook.

As to compensation
water.

(2) After four years from the passing of this Act the Board shall not be entitled to take water from the rural district council of Chesterfield by means of Work No. 14 (line of pipes No. 1) or any other work added thereto or in substitution therefor or by means of any other line of pipes used for the

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The Board shall through a suitable measuring gauge placed at or near the Ramsley Reservoir discharge or cause to be discharged from the line of pipes marked A B C D on the map and deliver into the Bar Brook below the junction of the Blake Brook until the Baslow Reservoir is completed and thereafter into the Bar Brook below the embankment of the said reservoir one gallon of water in respect of every two gallons taken by the Board through their Work No. 14 (line of pipes No. 1) or any other work added thereto or in substitution therefor or by means of any other line of pipes used for the purpose of taking unfiltered water.

(3) Until the date of the completion of the Baslow Reservoir the Board may take any water they may require which can and may be intercepted by means of Works Nos. 4 5 and 6 by this Act authorised except water coming from the portion of the drainage area referred to in subsection (1) of this section Provided that the Board shall place a gauge weir across the Blake Brook at the point marked II on the map through an aperture in which eighteen thousand five hundred gallons of water shall be allowed to pass and flow down the said brook every day of twenty-four hours And on any day during such time as the flow of water in the said brook shall be less than at the rate of eighteen thousand five hundred gallons per day of twenty-four hours the Board shall not be entitled to draw any water from the said brook but during such time as the flow is in excess of such rate the Board may take all or such part of the excess as they may require.

(4) After the completion of the Baslow Reservoir the following provisions shall apply in lieu of the provisions of the last preceding subsection :—

(A) The Board shall place on the Bar Brook at the point marked I on the map a dividing or double notched weir and shall by means of the same and of other necessary works cause to be diverted and delivered into the Bar Brook below the embankment of the said reservoir one gallon of water in respect of every two gallons taken by the Board from the Bar Brook at the said point I :

- (B) The Board shall discharge or deliver by a regular uniform and continuous flow throughout the twenty-four hours of every day from the said reservoir into the Bar Brook at a point therein situate not more than one hundred yards below the foot of the embankment of the said reservoir three hundred and fifty-six thousand six hundred and twenty-four gallons of water in respect of the water intercepted by the Board by means of Works Nos. 4 5 6 by this Act authorised: A.D. 1911.

Provided that if the Board construct Works Nos. 1 2 and 3 or any of them then and so soon as the said last-mentioned works or any of them are complete and capable of supplying water for the use of the Board three hundred and eighty-nine thousand six hundred and eight gallons shall be discharged or delivered into the Bar Brook at the said point in lieu of the above-mentioned quantity of three hundred and fifty-six thousand six hundred and twenty-four gallons:

- (c) For the purpose of measuring the quantity of water to be so discharged or delivered into the Bar Brook from the said reservoir the Board shall erect and maintain at a point on the said river below the said reservoir not more than one hundred yards from the foot of the embankment thereof a proper and suitable measuring gauge over or through which the said compensation water shall flow.

(5) The said weirs and gauges shall be open to the inspection and examination of the Board of Conservators of the Trent Fishery District and all persons interested therein.

(6) In case of any neglect on the part of the Board to maintain any gauge in a state of efficiency and in case of any other neglect by or in consequence of which the said respective quantities of compensation water shall not so flow the Board shall for every day on which such neglect occurs forfeit and pay to the Derbyshire County Council and to each of the persons affected thereby (all or any of whom may sue for and recover the same) the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them.

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(7) If any difference arise between the Board and any person so interested with respect to the construction or use of any gauge or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either of them by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

(8) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water of the Bar Sandyford Heathylea Blackleach and Blake Brooks which the Board can divert collect impound or appropriate by means of the works by this Act authorised except in respect of the Heathylea Sawmill and of any lands situate between the foot of the embankment of the said reservoir and the point of discharge of water of the said reservoir into the Bar Brook.

Periods for
compulsory
purchase of
lands.

11. The powers of the Board for the compulsory purchase of lands for the purposes of this Act shall cease in respect of Works Nos. 4 5 6 8 9 9A 14 15 16 17 18 19 20 21 22 23 after the expiration of three years and in respect of Work No. 10 after the expiration of five years and in respect of Works Nos. 1 2 3 11 12 13 after the expiration of seven years from the passing of this Act.

Periods for
completion
of works.

12.—(1) If the works by this Act authorised are not completed within the respective periods hereinafter prescribed (such periods being reckoned in each case from the date of the passing of this Act) then on the expiration of these respective periods the powers by this Act granted to the Board for making and completing the said works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

(2) The prescribed periods hereinbefore referred to shall be as follows (namely):—

(A) For Works Nos. 4 5 6 8 9 9A 14 15 16 17 18
19 20 21 22 23 five years:

(B) For Works Nos. 1 2 3 10 11 12 13 fifteen years:

Provided that Work No. 10 shall be completed within five years from the commencement thereof and Works Nos. 11

and 12 within three years from the commencement thereof A.D. 1911.
respectively but not later than the completion of Work No. 10. —

13. If the Board construct Works Nos. 4 5 6 8 9 9A Construction of Baslow Reservoir.
by this Act authorised or any of them the Board shall thereafter commence the construction of the Baslow Reservoir (Work No. 10) and shall complete the same within fifteen years from the passing of this Act.

14. Upon the completion of Works Nos. 11 and 12 by Stopping up roads in case of diversion.
this Act authorised the Board may stop up and cause to be discontinued as a road such portions of the existing roads shown on the deposited plans and sections as will be rendered unnecessary by the new portions of road so shown on the said plans. Such stopping up shall not take place until in each case the new portion of road is completed to the satisfaction of the road authority and opened for public use or in case of difference between the Board and the road authority until two justices shall have certified that the respective new portions of road have been completed to their satisfaction and are open for public use:

Before applying to the justices for their certificate the Board shall give to the road authority seven days' notice of their intention to apply for the same. As from the completion of the portions of new road to the satisfaction of the road authority or as from the date of the said certificate or certificates as the case may be all rights of way along the existing portions of road shall be extinguished. Provided that the Board shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of land otherwise than by agreement:

Provided always that before the completion of Works Nos. 11 and 12 the Board may make such temporary diversions of the existing roads within the limits of deviation as may be necessary or desirable during the construction of the reservoir embankment and works by this Act authorised and may stop up and discontinue the portions of the existing roads for which the temporary diversions are substituted and shall maintain such temporary diversions in good order and repair until the completion of Works Nos. 11 and 12:

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Provided further that all such temporary diversions shall be executed subject in all respects to the provisions of subsection (2) of the section of this Act of which the marginal note is "For protection of Derbyshire County Council."

Board may
acquire ease-
ments only
in certain
cases.

15.—(1) The Board may in lieu of acquiring any lands for the purposes of the tunnel (Work No. 9) by this Act authorised where the same is shown on the deposited sections as to be constructed at a depth of twenty-six feet or upwards between the crown of the tunnel and the surface of the ground acquire an easement or right of constructing and using the tunnel without being required to purchase the surface and may give notice to treat in respect of such easement describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easement as fully as if the same were lands within the meaning of those Acts.

(2)—(A) The Board may in lieu of acquiring any lands for the purposes of the works authorised by this Act other than the aforesaid tunnel (Work No. 9) where the same are intended to be constructed under ground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(B) As regards any lands in respect of which the Board have acquired easements only under the provisions of this subsection the Board shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(c) Provided always that nothing in this subsection contained shall authorise the Board to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Board to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement under the powers of this subsection shall be endorsed with a notice of this provision.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1911.
—
Persons under disability may grant easements &c.

17. The Board may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of their existing waterworks and of the reservoirs and works by this Act authorised with reference to the execution by the Board or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be diverted collected and appropriated by the Board flowing to upon or from such lands directly or derivatively into such works.

Power to agree as to drainage of lands &c.

18.—(1) The Board may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water.

Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force within the areas from or through which the said waters flow or within so much of those areas as may be defined in the byelaws.

(3) The provisions with respect to byelaws to be made by an urban authority contained in sections 182 to 186 of the Public Health Act 1875 shall apply to byelaws made by the Board under this section and any landowners who may be affected by any such byelaws shall be entitled to be furnished with a copy thereof and to oppose the confirmation thereof.

(4) All byelaws made under this section shall be subject to the approval of the council of every district comprising any

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A.D. 1911. part of the area within which it is proposed that they shall be in force. Provided that such consent shall not be necessary where in the opinion of the Local Government Board it has been unreasonably withheld.

(5) The Board shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Costs of
arbitration in
certain cases.

19. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Board award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Board by the claimant giving sufficient particulars and in sufficient time to enable the Board to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Board has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant:

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Board to amend the statement in writing of the claim delivered by him to the Board in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Board if they object to the amendment and such amendment shall be subject to such terms enabling the Board to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

20.—(1) For the purpose of executing constructing repairing cleansing emptying or examining any reservoir conduit line of pipes or other works of the Board the Board may cause the water in any such work to be discharged into any available stream or watercourse.

A.D. 1911.
 ———
 Discharge of
 water into
 streams.

(2) In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall make full compensation to all persons for damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

21. The Board shall not in exercising the powers of the section of this Act of which the marginal note is “Discharge of water into streams” cast or permit or suffer to pass or be cast or washed into any river stream or tributary passing through or by the county of Derby (including any county borough in the said county) any mud or offensive matter or other deposit or materials contained in or taken out of or removed from any of their reservoirs or works and they shall remove all such mud offensive matter or materials to some convenient place to prevent the same from being washed into any such river stream or tributary as aforesaid.

As to mode
 of cleansing
 reservoirs
 and works.

22. The Board within the urban district of Brampton and Walton and the parishes of Brimington Hasland and Tapton (being so much of the limits of the Board for the supply of water as are not included within the districts of the constituent authorities) and with the consent in writing of the local authority of the said urban district or of the said parishes as the case may be shall have and enjoy and may exercise but not to the exclusion of such local authority all the powers rights and authorities of an urban sanitary authority under the Public Health Act 1875 and the Acts amending the same with respect to the supply of water:

Board to
 have powers
 of urban
 sanitary
 authority
 for supply
 of water.

Provided that nothing in the said Acts contained shall authorise the Board to charge for the supply of water any rates other than the rates which they are at the date of this Act authorised to charge.

23. The works authorised by this Act shall form part of the water undertaking and the Board may use the water diverted

Works to
 be part of
 water under-
 taking.

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Act, 1911.

A.D. 1911. into or impounded by the same for the purposes of supplying water under their Acts of 1895 and 1904.

For preven-
tion of
plumbism.

24.—(1) All water supplied by the Board for domestic purposes shall be pure and wholesome. If at any time it shall appear to the Board that any water so supplied by them is liable to act upon lead in such a manner as to endanger the health of the consumer the Board shall forthwith treat any water so supplied so as to prevent such action.

(2) If at any time it shall appear to the medical officer of health for the county of Derby or to the medical officer of health for the borough of Chesterfield that any water supplied by the Board is liable to act upon lead in such a manner as to endanger the health of the consumer the Board shall upon being required so to do by the Derbyshire County Council or the Chesterfield Town Council as the case may be forthwith treat any water so supplied so as to prevent such action. Provided that if any difference arises between the Board and the Derbyshire County Council or the Chesterfield Town Council with respect to any requirement made under this subsection the difference shall be determined by the Local Government Board on the application of either of the parties.

(3) If the Board shall at any time supply water otherwise than in accordance with the provisions of subsections (1) and (2) of this section they shall be liable to a penalty not exceeding fifty pounds and to a further penalty not exceeding ten pounds for every day during which such default shall continue.

(4) The local authority for any district situate wholly or partly within the Board's limits of supply and the Derbyshire County Council may take proceedings to enforce the provisions of this section and for the recovery of penalties thereunder. Provided that the Board shall not incur more than one penalty (other than a daily penalty) for the same offence.

For pro-
tection of
Chesterfield
Rural Dis-
trict Council.

25. The following provisions shall apply and have effect for the protection of the Chesterfield Rural District Council (in this section called "the council") (that is to say):—

(1) Nothing in this Act contained shall authorise the Board to collect impound divert take use or appropriate any water of the Bar Brook or any water supplying or flowing into the Bar Brook or any tributary thereof

belonging to the council or which the council are entitled to take and use for the purpose of their waterworks within the catchment area of the council hereinafter defined: A.D. 1911.

- (2) The council shall have and may enjoy in the same manner and to the same extent as if this Act had not passed all rights which the council have of collecting impounding diverting taking and using the waters of the Bar Brook and the tributaries thereof and the waters supplying or flowing into the same within the said catchment area:
- (3) Nothing in this Act contained shall restrict or prevent the council from continuing extending or enlarging their waterworks on the Bar Brook or elsewhere or from making and maintaining on the Bar Brook or elsewhere within the catchment area of the council shown in blue on the map (scale one inch to one mile) signed in triplicate by Sir Henry Kimber Baronet the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one copy of which map has been deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons and one copy at the office of the Board such further waterworks as the Council may think fit:
- (4) The Board will not oppose any application of the council to Parliament or to the Local Government Board for a Bill or Provisional Order for the construction of waterworks within the said catchment area or the collecting impounding diverting taking and using within the said catchment area of the waters of the Barbrook or any tributary thereof or any waters supplying or flowing into the same:
- (5) Nothing in this section contained or shown upon the map shall in any way vary prejudice or affect any rights as riparian owner possessed by the Duke of Devonshire at the passing of this Act in or to any of the waters arising in or flowing from the said catchment area down any streams or watercourses issuing or deriving water therefrom.

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For pro-
tection of
Duke of
Rutland.

26. For the protection of the Most Noble Henry John Brinsley Manners Duke of Rutland his heirs and successors in estate and assigns (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed between the owner and the Board have effect (that is to say):—

(1) If the Board construct any of the Works Nos. 4 5 6 8 9 and 9A they shall give notice to treat for the purchase of the lands required for Work No. 10 within five years from the passing of this Act:

(2) Notwithstanding anything in this Act contained the Board shall not under the provisions of this Act except by agreement purchase and take any lands belonging to the owner except so much of the lands within the limits of deviation shown on the deposited plans as the Board shall reasonably require for the construction and maintenance of the Baslow Reservoir (Work No. 10) and the Road Diversions No. 1 and No. 2 (Works Nos. 11 and 12) but the Board may acquire within five years from the passing of this Act and the owner shall grant to the Board such easements or rights in or upon the lands of the owner within the limits of deviation defined upon the deposited plans as shall be necessary for the purposes of constructing placing laying inspecting maintaining cleansing repairing and renewing any of the remaining works by this Act authorised to be made in or through the lands of the owner and the Board shall not except by agreement with the owner erect any fence or other erection upon any lands of the owner in respect of which they acquire any such easement or right as aforesaid except for the protection of stream crossings and inlets to catchwaters:

(3) The compensation to be paid by the Board to the owner and to his lessees and tenants of the said lands in respect of the acquisition of such easements and rights and in respect of damage which he or they may sustain through the exercise of the powers of acquiring such easements and rights shall failing agreement between the respective parties be settled

in manner provided by the Lands Clauses Acts for A.D. 1911.
determining questions of disputed compensation in
the case of lands taken otherwise than by agreement
as if such easements and rights were lands within
the meaning of those Acts :

- (4) All catchwaters constructed by the Board on lands of the owner shall be placed underground and covered in but the Board may construct suitable inlets and inspection chambers in connection therewith :
- (5) If in constructing Work No. 12 (Road Diversion No. 2) the Board shall interfere with the Eagle-Stone private road of the owner they shall re-make the approach therefrom to the diverted road with a suitable gradient and re-erect the gates and posts to the reasonable satisfaction of the owner's agent :
- (6) The Board shall give to the owner or his agent before commencing any work for the construction maintenance or repair of any of the works constructed or to be constructed in or through the lands of the owner not less than one month's notice in writing of the intention to commence the same except in cases of emergency arising from accident or from defects in any of the works in which case the notice shall be given as soon as is possible after the commencement of the work or the necessity for the same shall have arisen :
- (7) The construction of the aqueducts and lines of pipes on the lands of the owner other than enclosed lands shall not be carried out during the months of August and September :
- (8) The Board shall not by themselves their contractors or agents erect any huts or other buildings to be used for dwellings by any overseers servants workmen navvies or other persons during or after the construction of the works by this Act authorised upon any part of the lands now belonging to the owner except with his previous consent in writing Provided that in respect of one dwelling-house for the use of waterworks' staff on or near the site of the Baslow Reservoir such consent shall not be unreasonably

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withheld and the site and plans of such dwelling-house shall be subject to the reasonable approval of the owner :

- (9) The Board shall make good all damage caused by workmen and other persons in the employ of the Board or their contractors to stock crops and property of the owner or his tenants during the construction or repair of any of the works by this Act authorised on the lands now belonging to the owner :
- (10) During the construction of the works by this Act authorised the Board shall keep and after construction leave in good repair such of the roads on the lands of the owner (not being highways repairable by the local authority) and the drains thereunder as the Board may be allowed to use for haulage or other purposes during such construction :
- (11) Any telegraph or telephone wires or apparatus laid by the Board in or through the lands of the owner shall be laid underground :
- (12) The Board shall at all times at their own cost give and maintain from any of the works by this Act authorised from which such a supply can reasonably be afforded full and sufficient supplies of water to the owner and the tenants of all existing dwelling-houses on the area coloured yellow on the map described in the section of this Act of which the marginal note is "As to compensation water" for domestic purposes and for cattle and horses and for farm and other agricultural purposes and such supplies shall be delivered at such points as the owner may reasonably require and the Board shall provide and maintain all such pipes conduits troughs cisterns taps and apparatus as may be requisite for furnishing and continuing such supply Provided that in the case of any such supplies the Board shall have the same powers of inspection and control of all pipes connections taps fittings and apparatus as they possess under this Act and the Acts incorporated herewith within their limits of supply :
- (13) The exclusive right of fishing stocking with fish fowling and sporting in and over all lands acquired

by the Board from the owner including the Baslow Reservoir with access thereto shall be reserved by and belong to the owner who shall be at liberty to maintain upon the Baslow Reservoir at a point to be reasonably approved by the Board a boathouse and one boat for the use of himself and his friends : A.D. 1911.

- (14) The Board shall from time to time at the request of the owner but at the cost of the Board provide suitable drains and culverts in the place of any drains and culverts of the lands farms and buildings of the owner which may be interfered with by the works of the Board and shall carry out to the reasonable satisfaction of the owner and in accordance with plans and sections to be previously submitted to and reasonably approved by him any alterations to the drainage of any farms or buildings of the owner which the Board may require in order to prevent pollution of the water taken by the Board under the powers of this Act :
- (15) All fences gates watercourses roads conveniences and other matters and things belonging to the owner which may be interfered with by the Board during the construction or repair of the works by this Act authorised shall forthwith after such interference be made good by the Board :
- (16) The Board shall compensate and indemnify the owner and his tenants for and against any loss or damage caused by the leakage or bursting of the reservoir aqueducts conduits or works by this Act authorised or any other loss or damage consequent upon the construction of the said works :
- (17) The Board shall pay to the owner on demand the reasonable costs of the employment by him of an additional keeper or watcher for the protection of the game and for the prevention of trespass upon lands of the owner near to the works of the Board during the construction or renewal or repair of the same :
- (18) No officer servant or agent of the Board shall at any time come upon the lands of the owner without the written authority of the Board and then only in the

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performance of his duties as an officer servant or agent of the Board and by such means of access to the works of the Board as shall be reasonably acquired by the owner for that purpose and such officer servant or agent shall at all times when upon such lands if required produce and show such authority to the owner his servants and agents:

- (19) Any difference arising between the owner and the Board under the provisions of this section shall be determined by a single arbitrator to be appointed by the parties and consenting to act or if for one month after the difference shall have arisen the parties do not agree upon an arbitrator who will consent to act then by an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply to any such proceedings:
- (20) The provisions in this section shall be in addition to and not in derogation from any other provisions of this Act or of any Act incorporated herewith which may enure for the protection or benefit of the owner.

For protec-
tion of Bas-
low and
Bubnell
Urban Dis-
trict Council.

27. For the protection and benefit of the Baslow and Bubnell Urban District Council (in this section referred to as "the district council") the following provisions shall except in so far as may hereafter from time to time be otherwise agreed in writing between the Board and the district council apply and have effect (that is to say):—

- (1) When the Board are in a position to supply water from the Baslow Reservoir authorised by this Act and so long thereafter as the said reservoir shall be used for such supply and after not less than three months' notice in writing under the hand of the clerk of the district council of the desire of such council to take a supply of water in accordance with the provisions of this section (such notice to state the minimum daily quantity of water required for such supply) the Board shall supply water from the said reservoir in bulk to such district council upon the terms and subject to the conditions hereinafter in this section stated:

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Act, 1911.

(2)--(A) Subject as aforesaid the district council shall be A.D. 1911.

entitled to a continuous supply of water for the use of the inhabitants of their district in such quantities as may be required not being less than the minimum stated in the notice served by the district council. Provided that the maximum quantity which the district council shall be entitled to demand under this section shall not exceed such a quantity as will (together with the quantity yielded by their existing or authorised sources of supply other than under the Derwent Valley Water Act 1899) amount to eighteen gallons per head per day of the population for the time being within their district actually supplied or intended to be supplied ;

(B) The price of the water so supplied shall be the cost price thereof ascertained as hereinafter stated and the price of such water shall be paid as hereinafter provided :

(3) The water so to be supplied as aforesaid shall be supplied from the said reservoir at a point or points as near as practicable to the said reservoir and such point or points shall be agreed in writing between the Board and the district council or failing agreement be determined by arbitration as by this section hereinafter provided. The quantity of water so supplied shall be measured and ascertained by means of a meter or meters to be fixed as near as reasonably practicable to such point or each such point of supply. Such junction or junctions as may be required for the purposes of the supply and all meters and other necessary fittings and appliances in connection therewith shall be and shall always remain the property of the Board but shall nevertheless be provided fixed and maintained by the Board during the time that the district council continue to be supplied with such water by means of such junctions meters fittings and appliances at the reasonable expense of the district council. If any difference shall arise between the district council and the Board as to the reasonableness or as to the amount of such expenses such difference shall be determined

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by arbitration as by this section hereinafter provided
Provided that no such meter shall (except in case of emergency) be removed altered or interfered with by the Board except after at least forty-eight hours' notice to the clerk or water inspector of the district council:

- (4) With regard to the meter or meters which shall be used for measuring and ascertaining the quantity of water supplied to the district council the following provisions shall have effect:—

(A) Such meter or meters shall be open at all reasonable times to the inspection and examination of the district council and of such persons as may be authorised in writing by them to inspect and examine such meters and to test the accuracy thereof and if on such examination such meter or meters is or are found to be in any respect out of repair inaccurate or insufficient the expense of testing refixing and repairing and in the event of its being found reasonably necessary to replace any such meter by a new meter the reasonable cost of such new meter and the reasonable expense of the testing thereof shall be paid to the Board by the district council;

(B) The readings of the meter or meters shall be taken quarterly on or as near the four usual quarter days in each year as reasonably possible and a certified copy of such readings under the hand of the engineer for the time being of the Board shall be sent to the district council as soon after the taking thereof as reasonably possible;

(C) Such readings as aforesaid shall be taken as *primâ facie* evidence of the quantity of water supplied to the district council (unless it shall be shown or admitted that any meter is out of repair inaccurate or insufficient in which case payment shall be made as in the next following subsection provided) and the district council shall pay to the Board as provided in subsection (2) of this section for all water shown by such readings to have

been supplied to them within one month after the delivery of the quarterly account for water supplied; A.D. 1911.
—

(D) In the event of it being shown or admitted that such reading is not correct by reason of any meter being out of repair inaccurate or insufficient then the Board may by agreement with the district council adopt and charge for the quantity recorded by the same meter or the corresponding meter in use in the corresponding quarter of the previous year or for such a quantity of water as failing agreement shall be determined by arbitration as by this section hereinafter provided to be the fair and reasonable quantity of water to be charged for and paid by the district council:

- (5) The Board shall not be held responsible for any failure or insufficiency of the water supply to the district council by reason of frost failure of machinery or any other accident or unavoidable cause whatsoever Provided that in the event of any such failure or insufficiency the Board shall take all reasonable steps with a view to the resumption of the ordinary supply at as early a date as possible having regard to all the circumstances And provided further that unless the supply of water from the said reservoir shall entirely fail and cease the Board shall supply to the district council such a proportion of the whole quantity which they shall for the time being be impounding by means of the said reservoir as the average quantity supplied to the district council during the corresponding period of the last preceding year shall have borne to the total quantity impounded by the Board by means of the said reservoir during that period and if any question shall arise between the Board and the district council with regard to what such total quantity was or as to whether any special circumstances existed during the said period such as to make it fair and reasonable that the above arrangement should be modified at the instance of the Board or of the district council then the matter shall be referred to and determined by arbitration as in this section hereinafter provided:

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- (6) For the purposes of this section the cost price of water supplied in any year by the Board to the district council shall be deemed to be the sum which bears to the total sum payable in such year by the Board for the purposes hereinafter mentioned the same proportion as the total annual supply of water supplied by the Board to the district council as shown by the quarterly readings of the meter or meters above mentioned (not being less than the minimum quantities) bears to the quantity of water impounded by the Board during such year by means of the works authorised by this Act;

The purposes hereinbefore referred to are—

The annual payments of principal and interest in respect of the capital expenditure of the Board on account of the works either wholly or partially within the district of the district council authorised by this Act including the purchase of lands and easements together with the cost of the maintenance and renewal of the said works and all other costs and expenses which may be incurred in executing and carrying on the said works including rates and taxes and other outgoings paid in connection with the said works:

- (7) The district council shall be entitled from time to time by six months' notice in writing to the Board but subject to the maximum contained in subsection (2) (a) of this section to alter the minimum quantity of water with which they require to be supplied but they shall not be entitled to give notice to alter such minimum quantity until after the expiration of two years from the service of a notice under subsection (1) of this section:
- (8) For the purpose of enabling the district council to carry out the provisions of this section the purposes thereof shall be deemed to be the purposes of the Acts in pursuance of which the district council are entitled to construct waterworks and to supply water:
- (9) If any difference shall arise between the district council and the Board in regard to the construction of any

of the foregoing provisions of this section or in regard to any act or thing to be done or any payment to be made in pursuance thereof or in regard to the rights and liabilities of the district council or the Board or otherwise in relation to the position of the parties under this section such difference shall be referred to the decision of an arbitrator to be agreed upon between the parties or in default of agreement to the decision of an arbitrator appointed according and subject to the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force.

A.D. 1911.

PART III.

GAS.

28. The limits of the Board for the supply of gas are hereby extended and shall include in addition to the existing limits as defined by section 4 of the Act of 1895 and extended by the Chesterfield Borough (Extension) Order 1910 (which Order is confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1910) the parishes of Barlow Calow Duckmanton Temple Normanton and Wingerworth and from the date of this Act the Board shall have and may exercise within the said parishes all the powers conferred and shall be subject to all the obligations imposed upon them by the Acts of 1895 and 1904 and this Act with reference to the gas undertaking.

Extension
of gas limits.

29. No penalty shall be incurred by the Board for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Board Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Board.

Saving as to
penalties.

30. In order to enable the Board to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

- (1) The Board may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on

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the occasion of any renewal between the Board's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:

- (2) The Board may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published either twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Board:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Board's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Board and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Board. Any officer of the Board duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Board's specification or if the meter is not placed as required by this section the Board may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Board refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Board's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

31. At least twenty-four hours' notice in writing shall be given to the Board by every gas consumer before he shall quit any premises supplied with gas by meter by the Board and in default of such notice the consumer so quitting shall be liable to pay to the Board the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Board to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Board.

A.D. 1911.
 Gas consumers to give notice to Board before removing.

32. If a person requiring a supply of gas from the Board has previously quitted premises at which gas was supplied to him by the Board without paying to them all gas charges and meter rent due from him to the Board they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse supply to persons in debt for other premises.

33. A notice to the Board from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Board.

Notice to discontinue supply of gas.

34. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Board shall be paid by or to the Board to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Board.

Period of error in defective meters.

35. The Board may contract with any local authority company or persons authorised to supply gas under Parliamentary powers in any district adjacent to the Board's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Board to lay any mains or interfere with any streets beyond their limits of supply.

Board may contract with local authority &c. for supply in bulk.

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For pro-
tection of
Midland
Railway
Company.

36. In executing the works authorised by this Act where the same will cross over or under or otherwise affect any railway or any part of the railway works of the Midland Railway Company (hereinafter referred to as "the Midland Company") the Board shall (except so far as it may be otherwise agreed between the Midland Company and the Board) be subject to the following conditions:—

(1) All such works shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the Midland Company and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Board of his objections thereto he shall be deemed to have approved thereof:

(2) All works which the Board may execute under this section shall be so constructed as to cause no injury to the railways and railway works of the Midland Company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such works any injury be caused to the said railways and railway works or any interruption be caused to the traffic the Board shall make full compensation to the Midland Company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided:

(3) Any additional expense which the Midland Company may reasonably and properly incur in maintaining their railway bridges and railway works by reason of the existence of any mains or pipes of the Board laid under the powers of this Act across over or under such bridges or works shall be paid by the Board:

(4) Any dispute or difference which may arise between the Midland Company and the Board with reference to the provisions of this section or in any way arising

thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the Midland Company or the Board and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

A.D. 1911.

37. In executing the works authorised by this Act where the same will cross over or under or otherwise affect any railway or any part of the railway works of the Great Central Railway Company (hereinafter referred to as "the Great Central Company") the Board shall (except so far as it may be otherwise agreed between the Great Central Company and the Board) be subject to the following conditions:—

For protection of Great Central Railway Company.

(1) All such works shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer for the time being of the Great Central Company and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Board of his objections thereto he shall be deemed to have approved thereof:

(2) All works which the Board may execute under this section shall be so constructed as to cause no injury to the railways and railway works of the Great Central Company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution maintenance or failure of such works any injury be caused to the said railways and railway works or any interruption be caused to the traffic the Board shall make full compensation to the Great Central Company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided:

A.D. 1911.

- (3) Any additional expense which the Great Central Company may reasonably and properly incur in maintaining their railway bridges and railway works by reason of the existence of any mains or pipes of the Board laid under the powers of this Act across over or under such bridges or works shall be paid by the Board:
- (4) Any dispute or difference which may arise between the Great Central Company and the Board with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the Great Central Company or the Board and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PART IV.

FINANCIAL AND MISCELLANEOUS.

For protec-
tion of
Derbyshire
County
Council.

38. In executing the works and exercising the powers by this Act authorised so far as they affect any road which may now or hereafter be or become a main road (hereinafter in this section referred to as "any main road") or so far as they affect any county or main road bridge or approaches or other county work in the county of Derby vested in the county council of the administrative county of Derby (in this section called "the county council") the following provisions for the protection of the county council shall (unless otherwise agreed) apply and have effect (that is to say):—

- (1) All aqueducts conduits mains or lines of pipes to be laid in or along any main road or in upon or across any county or main road bridge or any arch connected therewith shall be constructed and laid in such a position in the road or bridge or at the side thereof and at such depth as the county council shall by writing under the hand of their surveyor (hereinafter in this section referred to as "the county surveyor") reasonably direct and the gradient of the respective

approaches to any such bridge shall not be altered without the consent of the county council but such consent shall not be unreasonably refused: A.D. 1911.

- (2) The road diversions Nos. 1 and 2 (Works Nos. 11 and 12 by this Act authorised) and all other works by this Act authorised or required to be constructed so far as they are constructed in along or across or in substitution for any main road or any county or main road bridge or any approach thereto shall be executed at the expense of the Board under the superintendence (if the same be given) and to the reasonable satisfaction of the county surveyor Provided that if he shall not within fourteen days express his disapproval in relation thereto he shall be deemed to have approved thereof:
- (3) The embankments and retaining walls of the said road diversions No. 1 and No. 2 shall be maintained and repaired at all times by and at the expense of the Board and to the reasonable satisfaction of the county council:
- (4) In the event of any slip of the ground in the embankments retaining walls or cuttings of any road diversion made under the provisions of this Act occurring at any time any damage to the road resulting therefrom shall be made good by and at the expense of the Board to the reasonable satisfaction of the county surveyor:
- (5) The Board shall provide erect and maintain at such points as the county council may reasonably require proper and sufficient fences or guards to protect the said road diversions from being blocked by snow drifts If and whenever the said road diversions or either of them become blocked by snow drifts the Board shall pay to the county council one half of the expenses incurred by the county council in clearing the roadway and such expenses shall be a debt due to the county council by the Board and shall be recoverable accordingly:
- (6) The surplus paving metalling or materials removed during the construction of the said road diversions or during the laying of aqueducts conduits mains

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lines of pipes or other works shall not be placed on the metalled portion of the road without the written consent of the county surveyor and subject to such conditions and directions as he may reasonably require or give :

- (7) All surplus paving metalling and road materials removed during the construction of the said road diversions or during the laying of the aqueducts conduits mains or lines of pipes or works on any main road or in upon or across any county or main road bridge and not required by the Board for the purpose of reinstating and making good the road or county or main road bridge or constructing any substituted road shall become the property of the county council and may be used by them for the maintenance and repair of any main road in the district and the Board shall on receiving notice from the county surveyor forthwith remove the same to such place or places not more than one mile from the place of excavation as the county surveyor may direct :
- (8) Nothing in this Act contained shall authorise the Board to interfere with the structural part of any county or main road bridge without the consent in writing of the county council which consent shall not be unreasonably withheld and may be given upon such conditions as the county council may reasonably determine :
- (9) Nothing in this Act contained shall interfere with the right of the county council at any time or times to alter the level of or deviate drain widen reconstruct or improve in any manner they think fit any main road in or along which any aqueducts conduits mains or lines of pipes of the Board shall have been laid under the authority of this Act and the Board shall with all convenient speed on receiving notice in writing under the hand of the county surveyor so to do alter the position of any such aqueducts conduits mains or lines of pipes in the manner and to the extent prescribed in such notice and to the satisfaction of the county surveyor Provided that the county council shall afford all reasonable facilities

to the Board for such alteration Provided also A.D. 1911.
that during the alteration deviation draining widening
reconstruction or improvement of such main road
the county council shall afford all reasonable facilities for temporarily carrying such aqueducts conduits
mains or lines of pipes along the main road so as
not to interrupt the continuous supply of gas or
water or to diminish the pressure of such supply
through such aqueducts conduits mains or lines of
pipes The expense of any such alteration of the
aqueducts conduits mains and lines of pipes of the
Board shall if the parties disagree be borne as
the arbitrator may direct :

- (10) Nothing in this Act contained shall interfere with the
right of the county council at any time to remove
alter widen reconstruct or rebuild any county or
main road bridge or the approaches thereto over or
attached to which any aqueducts conduits mains or
lines of pipes of the Board constructed under the
powers of this Act are carried in the same manner
as they might have removed altered widened recon-
structed or rebuilt such bridge or the approaches
thereto if this Act had not been passed and as if
such aqueducts conduits mains or lines of pipes
had not been laid over or attached to any such
bridge and in the event of any such bridge or the
approaches thereto over or attached to which any
such aqueducts conduits mains or lines of pipes are
laid being removed altered widened reconstructed
or rebuilt as aforesaid the Board shall at their own
expense in all things alter the position of such
aqueducts conduits mains or lines of pipes and any
works by which the same are carried over or attached
to any such bridge or the approaches thereto as
aforesaid to the reasonable satisfaction of the county
surveyor Provided that the county council shall
afford all reasonable facilities to the Board for such
alteration Provided also that during such removal
alteration widening reconstructing or rebuilding of
such bridge or the approaches thereto as aforesaid
the county council shall afford at the expense of the

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A.D. 1911.

Board all reasonable facilities for temporarily carrying such aqueducts conduits mains or lines of pipes across the stream river or other place over which such bridge is carried so as not to interrupt the continuous supply of gas or water or to diminish the pressure of such supply through such aqueducts conduits mains or lines of pipes :

- (11) All works of the Board so far as they affect any main road or county or main road bridge shall be so executed by the Board so far as reasonably practicable as not in any way to impede or interfere with the traffic on any such road or bridge or the approaches thereto and the Board shall not without the consent of the county surveyor open or break up at any one time a greater length than one hundred yards of any road and where any material or soil from any works trenches or excavations in any main road is deposited upon the metalled portion of the main road such material or soil shall be so placed as the county surveyor may reasonably direct Provided always that where reasonably practicable at least twelve feet of metalled road shall be kept clear for the use of the public :
- (12) All costs charges amounts and expenses payable by the Board to the county council or by the county council to the Board under the provisions of this section shall be recoverable as a debt due from the Board to the county council or from the county council to the Board as the case may be :
- (13) The county council shall not be liable for or in respect of any damage or injury to any aqueducts conduits mains pipes connections meter boxes man-holes stopcocks or other property of the Board laid or fixed in or upon the metalled portion of any main road or county or main road bridge arising from the ordinary use by the county council of a steam or other roller not exceeding fifteen tons in weight :
- (14) If any difference arise between the county council and the Board touching this section or anything to be done or not to be done thereunder or the giving

or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by arbitration by an engineer to be agreed upon between the county council and the Board and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 shall apply thereto.

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39.—(1) The Board may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under any public general Act borrow at interest and upon the securities defined in section 46 subsection (1) of the Act of 1895 for the purposes undermentioned the following sums (that is to say):—

Power to borrow and period for re-payment.

(A) For the purchase of lands and easements for and the construction of the reservoirs road diversions new road byewash catchwaters tunnel tunnel shaft and stream diversion (Works Nos. 1 3 5 6 8 9 9A 10 11 12 13 16 and 19) by this Act authorised any sum not exceeding one hundred and forty-five thousand five hundred pounds:

(B) For the remainder of the permanent works relating to the water undertaking by this Act authorised any sum not exceeding ten thousand pounds:

(C) For the general purposes of the gas undertaking and the water undertaking respectively such further sums as the Local Government Board may sanction:

(D) To pay the taxed costs of this Act the sum necessary for that purpose.

(2) Moneys borrowed under this section shall be repaid within the following respective periods (that is to say):—

Money borrowed for purpose (A) within fifty years from the date of borrowing:

Money borrowed for purpose (B) within thirty years from the date of borrowing:

Money borrowed for purpose (D) within five years from the date of the passing of this Act:

Money borrowed with the sanction of the Local Government Board within such respective periods as that Board may prescribe.

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The above-mentioned respective periods are hereinafter referred to as "the prescribed periods" and such repayment shall be made either by equal annual instalments of principal or of principal and interest or by means of a sinking fund appropriated for that purpose and with the accumulations thereof (if any) applied for that purpose.

Sections of
Acts of 1895
and 1904 to
apply.

40. The undermentioned sections and parts of sections of the Acts of 1895 and 1904 shall apply to the works and powers by this Act authorised and conferred and shall have effect as if the same were in terms re-enacted in this Act (that is to say):—

Of the Act of 1895—

Section 36 (Application of moneys arising from sale &c. of land);

Section 46 Subsection (2) (Application of borrowed money);

Section 47 (Board may borrow under Local Loans Act 1875);

Section 48 (As to mortgages of Board);

Section 49 (Regulations as to sinking fund);

Section 50 (Protection of lender from inquiry);

Section 51 (Annual return to Local Government Board):

Of the Act of 1904—

Section 6 (Correction of errors &c. in deposited plans and book of reference);

Section 9 (Power to retain sell &c. lands);

Section 23 (Inquiries by Local Government Board).

Power to
re-borrow.

41. Subsection (4) (Re-borrowing) of section 46 of the Act of 1895 is hereby repealed and in lieu thereof the following provisions shall apply and have effect (that is to say):—

(1) The Board shall have power—

To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Board in repaying moneys previously borrowed under any

statutory borrowing power and which at the time A.D. 1911.
of such repayment it was intended to replace by
borrowed moneys:

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section:

(3) The Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys:

(4) The Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

42. Section 60 of the Act of 1895 and so much of section 22 of the Act of 1904 as applies and re-enacts section 60 of the Act of 1895 for the purposes of the Act of 1904 are hereby repealed and in lieu thereof the following provision shall apply and have effect (that is to say):—

Justices not disqualified.

No judge or justice shall be disqualified from acting in the execution of the Chesterfield Gas and Water Board Acts 1895 to 1911 by reason of his being liable to the payment of any gas or water rate rent or other charge payable to the Board under these Acts.

43. Proceedings for the recovery of any demand made under the authority of this Act or the Acts of 1895 and 1904

Recovery of demands.

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A.D. 1911. or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Costs of Act. 44. The costs charges and expenses preliminary and of and incidental to preparing and obtaining this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board in the first instance out of the revenue of their water undertaking or gas undertaking or either of them but ultimately if the Board so determine out of moneys borrowed under the powers of this Act.

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